Mobin vs The State (Govt. Of Nct Of Delhi) on 12 December, 2022

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2918/2022
   MOBIN ...
   Through: Mr.Amit Singh Rathore, A
   versus
   THE STATE (GOVT. OF NCT OF DELHI) ...
   Through: Mr.Aman Usman, APP for S
   Insp. M.K.Manoj, PS B
   Rao.
   CORAM:
   HON'BLE MR. JUSTICE YOGESH KHANNA
   ORDER

% 12.12.2022

1. I have heard arguments advanced by counsels from both sides.

2. No ground for anticipatory bail is made out on facts as stated in the status report as follows:-

> The grounds for his involvement in this case are as follows:-
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> 1. On 13.09.2019, when the alleged payment of Rs.10000/- was transferred from the Paytm Payment Bank Account No.918587943155 to Bank of Baroda Account No.37398100005328 registered in the name of Mr. Wajid S/o Hakam Khan, the registered mobile number with the Paytm Payment Bank Account No. 918587943155 is mobile number Mobile No. 7060015377 which was registered in the name of the applicant and presently the same number is registered in the name of the applicant.
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> 2. During interrogation, Account holder of Bank of Baroda Account No. 37398100005328, Mr. Wajid S/o Hakam Khan said that in year 2019, after one or two months of opening of the account, the applicant who is son of his father's maternal uncle, took his ATM Card and PIN Number saying that one payment of Rs. 5000/- was to be sought from his known.

The applicant took his A TM Card and PIN Number from him and kept his A TM Card and PIN Number for about one month. When he went to his Bank to withdraw his scholarship, then the Branch Manager told him that his A/C was blocked due to fraud transactions. Then he asked to

Mubin @ Mubi (applicant) to return his ATM Card and PIN Number and so he returned the same to Mr. Wajid Khan mentioned above.

3. As per CDR of Mobile Number 7310667120 (who introduced himself as Rajkumar), there are total 17 calls made between mobile number 7310667120 (who introduced himself as Rajkumar) and mobile number 8587943155 (of Mr. Noor Hasan) on 08.03.2019 from 20:40:09 hour to 21.44.29 hour. During the call at 21 :24 hour, registered mobile number the Paytm Payment Bank Account was changed from Mobile No. 8587943155 (of Noor Hasan) to another Mobile No.8905483644. There is no call between them thereafter. Apart from this, there is no call between mobile number 7060015377 (of the applicant) registered with Paytm Payment Bank Account and mobile number 8587943155 (of Noor Hasan). This shows that Mr. Noor Hasan was also cheated by the same accused person.

4. As per CDR of Mobile Number 7310667120 (who introduced himself as Rajkumar) and Mobile Number 7060015377 (issued in the name of the applicant) presently registered with Paytm Payment Bank Account, three IMEIs were used in the Mobile Number 7310667120 and seven IMEIs were used in the Mobile Number 7060015377. One IMEI No.35170110150863 is commonly used in both the mobile numbers. This shows that both the mobile numbers remained in the possession of the same person.

5. During the time of incident, location of both the mobile number i.e. mobile number 7310667120 (who introduced himself as Rajkumar) and mobile number 7060015377 (issued in the name of the applicant) presently registered with Paytm Payment Bank Account were on same mobile tower. This shows that both the mobile numbers remained in the possession of the same person.

6. During interrogation, the applicant said that his mobile number 7060015377 (issued in the name of the applicant) was lost, but there are calls between mobile number 7060015377 and his brother Robin's mobile number 7906070704 (saved in his mobile phone) even before the incident and after the incident i.e. on 13.03 .2019. Total 78 calls were made from 03.03.2019 to 13.03.2019 and total 28 calls were made from 14.03.2019 to 09.04.2019. IMSI No. 404975990782323 of mobile number 7060015377 was same from 03.03.2019 to 09.04.2019. This shows that mobile number 7060015377 was not lost but remained in the possession of the applicant.

3. It is stated by learned APP for State that interrogation of the present applicant is required and he has not been cooperating in the investigation.

4. Considering the facts no ground is made out for anticipatory bail. The bail application stands dismissed. Pending application, if any, also stands disposed of.

YOGESH KHANNA, J.

DECEMBER 12, 2022 VLD